Transparency agendas are being used to legislate against consortial open-access models even though it has good cost outcomes

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Some open-access advocates argue that transparency and accountability are key for open access (meaning: the removal of price and permission barriers to reading academic research). Indeed, this is one of the many points when the discourses of neoliberal* governmentality intersect with open academic publication. For, it is argued, by opening up and ensuring that bodies are accountable, we will ensure the lowest prices for the "customer" and the best use of public funding. It is particularly important, it is often argued by those of a more libertarian persuasion, that governments are accountable for the way that they spend their taxpayer dollars. This is indeed why, again, some argue, taxpayer-funded research should be openly available (for the record: I think such research should be openly available, but I also think all university research – even that only funded by the institution – should be openly available for the benefit of humankind).

Peter Suber has written before about the taxpayer argument for OA and the refinements and specificities that are needed to make it work. Yet there is a deeper problem with the taxpayer argument: it is embedded within a specific economic regime that has emerged over the past 40 years that states that markets are the best and only true practical arbiter of all aspects of social life and will determine the best price outcome for participants.

I disagree with this assertion. In the work that I have done with Caroline Edwards on the Open Library of Humanities we have demonstrated a remarkable return on investment for participating institutions inside a non-classical economic model that works for the public good. We have given a medium-scale example in which a better, more cost-effective and equitable outcome for open access is achievable in the scholarly communications space. This is achieved through institutions working together – collectively – to fund a platform on a not-for-profit basis. 240 or so institutions recognize this at present and we continue to grow, flipping journals to open access, with no author fees, and therefore providing author equity, as we go.

Yet that spectre of accountability haunts us. We were initially funded by the GALILEO consortium, which saw our cost-effective solution as a good investment for their group of many many university libraries. Yet, they do not fund us now. Never mind that the annual fee for our 23 journals is less than a single APC from a for-profit publisher, though. When legislators saw that State-funded universities were paying for things that others receive for free, they decreed this an unlawful use of taxpayer dollars. The State of Georgia can now no longer fund open-access initiatives such as OLH, Knowledge Unlatched, SCOAP3, or even the arXiv, at the State level, because it is not a *market competitive* use of state funding.

The same goes elsewhere in the world. Germany has a problem with the state-accountability measures of how they fund government-disbursed money. Often, when German institutions approach us, they say: we need you to give us a direct benefit so that we can tell our government that we were paying for something that we wouldn't otherwise get. So forget the fact that we are cheaper and offer better value, to both society and libraries, it becomes necessary for us to sell something, so that the transparency and accountability agendas can be fulfilled. I suspect the trend of this spreading will continue.

This all frustrates me immensely. Certainly, we'll work around it and find a way to continue to get support from these institutions, which have mixed-revenue streams from public and private sources. (I'm not known for giving up easily.) But this is a concrete example of the ways in which open access that tries to avoid neoliberalism gets caught up in the terminological slippages of "open"/transparency/accountability. This problem is a *direct* side effect of the insistence on economic efficiency, markets, and taxpayer accountability – sometimes even from OA advocates –

as the best way to determine the pricing and practices of scholarly communications. I perceive what we do at OLH as a move to position education and research *outside* of market exchange, even while understanding that we must pay people for their labour so as not to be exploitative under the capitalist systems within which we exist. Thus we have a revenue stream founded on an understanding of collective self-interest in the long-term from economic actors within a non-classical system (much like a system of taxation that provides public benefits).

We at OLH do, of course, operate within some "market-like" principles. I assume that institutions choose to support us not only out of the goodness of their hearts but because we also demonstrate an advantage to their budgets (cheap and cost-effective). It is, in this sense (if you want to have a revenue stream that isn't state-funded taxation), very difficult to escape all competitive proxy-quantitative matters of judgement that can then be re-synthesized into the metaphorical context of "the market". Yet scholarly communications works as such a poor financial "market" already, mostly because its primary suppliers are also its readers, but not its payers (that's the library), even while the prestige economy of publication serves as a positional good. It doesn't work in the way that the market fundamentalists want and so, according to their logic, they must restructure it so that it does. This leads to the type of legislation against non-classical economic models. I believe we should do the opposite: we should restructure the way we pay for scholarly communications to cease pretending that competitive price pressure will emerge and, instead, work together – even if economically – to fund a new infrastructure.

For those working on the intersections of neoliberalism and OA, I hope this proves an instructive example of real-world damage/difficulty. For those who support what we do, I hope it will help to temper the more damaging ways in which competition and markets are advocated for within OA circles.

- I understand neoliberalism to mean, following William Davies, the disenchantment of politics by economics; the extension of economic techniques to govern all facets of social existence, even while the state continues to need to intervene to structure the market to function, and to structure itself (the government) to function like a market (Foucault's "state under the supervision of the market").